

Approved as to
form only:

OKM

Date: 8/18/15

AMENDMENT NO. 1 TO CONTRACT NO 6353
AGREEMENT BETWEEN CITY OF CHEYENNE, WYOMING
AND
NOEL GRIFFITH JR. ASSOCIATES ARCHITECTS

The following Exhibit "D" is adding additional scope of work to Contract No. 6353 between the City of Cheyenne and Noel Griffith Jr. Associates Architects, dated June 8, 2015 are hereby amended:

"Exhibit D"

Addition to the Waste Transfer Station Scope of Work:

- F. The consultant shall assist City staff in preparing the RFP for CMAR proposals, and in the CMAR selection.
- G. The consultant shall work with the CMAR during project design as the CMAR develops project estimates and final GMP to remain in project budget.
- H. The consultant shall meet with City staff and the CMAR to review the GMP proposal.
- I. The consultant shall prepare Construction documents to support CMAR's plan for soliciting subcontract bids.
- J. The consultant shall meet with City staff and the CMAR to review qualifications of prospective subcontract bidders, and to review subcontract bids.
- K. The consultant shall participate, in conjunction with CMAR, in preparation of cost estimates in all phases of design.

This Amendment shall be in full force and effect when executed by all parties.

Dated this _____ day of _____, 2015.

CITY OF CHEYENNE

BY:

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

NOEL GRIFFITH & ASSOCIATES ARCHITECTS

BY: _____

Title: _____

WITNESS:

Title: _____



MEMORANDUM

To: Mayor Kaysen
City Council

From: Craig LaVoy, P.E., Deputy Public Works Director

Date: August 7, 2015

Re: Change Order #1 to Professional Service Agreement with Noel Griffith & Associates Architects Contract # 6353 for the Transfer Station Update Phase 2 & 3 Design.

This Change order will not increase the overall cost for design and construction administration of this project. This change order modifies the contract scope of work to add Noel Griffith, Jr. & Associates architects to assist City's representative in performing the duties as describe in the modification to scope of work in preparing a RFP for Construction Manager at Risk (CMAR) proposal and in the selection of the CMAR.

Risk Review

By: BT 4/30/15
PROFESSIONAL SERVICES AGREEMENT
Project Name: Transfer Station Update Phase 2 & 3 Design

Approved as to
form only:

AKW
Date: 4/30/15

CONTRACT # 6353
PROJECT NAME – Transfer Station Update Phase 2 & 3 Design
PROFESSIONAL SERVICES AGREEMENT

THIS AGREEMENT made and entered into this 8th day of June, 2015, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "City" and Noel Griffith, Jr. & Associates Architects, hereinafter referred to as the "Consultant."

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK:

The Consultant agrees to provide services as described for the above mentioned project, in accordance with the Scope of Work attached hereto as Exhibit "A", incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE:

The Scope of Work shall be completed and the final plans, specifications and bid documents submitted to the City in accordance with the Project Schedule given in Exhibit "C" which is attached to the Agreement, incorporated by reference and expressly made a part hereof. Any extensions of the time limit set forth in Exhibit "C" must be agreed upon in writing by the parties.

3. CONSULTANT RESPONSIBILITY:

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies.

4. GIS MAPS AND DIGITAL DATA:

If the Consultant uses any maps, coverages, images, or other digital data created by the Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS) for the project specified in Exhibit "A", the Consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

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Project Name: Transfer Station Update Phase 2 & 3 Design

5. GIS DATA LIMITATION AND DISCLAIMED LIABILITY

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user. The CLCCGIS cannot vouch for any unauthorized use.

6. COMPLIANCE WITH LAWS:

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

7. DRUG-FREE WORKPLACE:

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and subcontractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the contract. It is the responsibility of the Consultant to familiarize himself with the requirements of this policy and to inform all his employees and sub-contractors of the requirements and ensure their compliance. If the Consultant, his employees or sub-consultants are found in violation of this policy, the contract may be terminated.

8. INDEMNIFICATION / HOLD HARMLESS:

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or subcontractors in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

9. INSURANCE REQUIREMENTS:

The Consultant must provide proof of the following insurance coverages:

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Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

(1) Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and

(2) In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and

(3) Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement;

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and

(4) In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Consultant shall provide the City with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

10. DUTIES, RESPONSIBILITIES AND LIMITATIONS OF AUTHORITY OF THE CONSULTANT.

The Consultant shall supervise and be accountable for all matters related to the project. This responsibility shall extend to supervision and responsibility for the actions of sub-

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contractors or consultants working for the Consultant.

11. MINORITY BUSINESS ENTERPRISES:

All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.

12. COMPENSATION:

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City on a Monthly basis as of July 1, 2015, and the City agrees to pay Consultant according to the fee schedule given in the Exhibit "B" which is attached to this Agreement, incorporated by reference and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant's progress, verified by the City, in completing the work as described in Exhibit "A". In no event shall the total amount billed by the Consultant to the City pursuant to this Agreement exceed the total project contract amount specified in Exhibit "B". Final payment shall be made following acceptance of the work by the City. Original quality reproductions of all designs, plans, reports, specifications, drawings and other services rendered by the Consultant shall become the sole property of the City and shall be delivered to the City along with the final invoice, or immediately upon their preparation. A portion of the payment may be held until any claims are resolved.

13. CITY REPRESENTATIVE:

Prior to commencement of work, the City will designate in writing, a City Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the City Representative.

14. MONTHLY REPORT:

The Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Services, time sheets, and work schedule, in such form as the City Representative may request, as of the last business of each month. Failure to provide the required report will delay processing of any payment request until the report is submitted.

15. INDEPENDENT CONTRACTOR:

The Consultant shall function as an independent contractor for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities

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that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City of Cheyenne or to incur any obligation of any kind on the behalf of the City of Cheyenne.

16. TAXES:

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by in connection with its operations under this Agreement.

17. APPROVAL OF PLANS:

The City's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The City's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the City's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

18. DEFAULT:

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

19. REMEDIES:

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages;
- b. Treat the Agreement as continuing and require specific performance; or
- c. Avail itself of any other remedy at law or equity.

20. TERM:

The term of this Agreement shall be from the date on which this Agreement is executed by both parties hereto until May 4, 2018 unless terminated earlier pursuant to the provisions of this Agreement. This term of this Agreement may only be extended by a written document executed by both parties, in all instance in accordance with City policies and procedures.

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21. TERMINATION by CITY:

The City Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this contract in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected, and
- b. Deliver to the City Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.

In the event of termination for convenience, the City will pay the Consultant for accepted work done to date of termination. This Agreement may be immediately terminated by either party with cause.

22. ADDITIONAL REMEDIES OF CITY:

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant.

23. CONFLICT OF INTEREST:

In entering this Agreement, the Consultant covenants that it presently has no interest, and shall not acquire any interest, direct or indirect, financial or otherwise, which would conflict in any manner or degree with performance of the services hereunder. In addition, the Consultant covenants that in the performance of this contract, no subcontractor or person having such an interest shall be employed. The Consultant certifies that no one who has or will have any financial interest under this contract is an officer or employee of the City.

24. WAIVER:

The waiver by either party of any term, condition or covenant, or breach of any term, condition or covenant, shall not constitute a waiver of any other term, condition or covenant, or breach thereof.

25. SEVERABILITY:

If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of this Agreement, which shall continue in full force and affect.

26. SUCCESSORS AND ASSIGNS:

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All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective successors and assigns.

27. ASSIGNMENT:

Neither party shall assign this Agreement without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities hereunder. However, nothing in this Agreement shall prohibit the Consultant from subcontracting to a qualified subcontractor.

28. THIRD PARTY RIGHTS:

The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive any of the parties' immunities.

29. AMENDMENT:

This Agreement and #1 may only be amended by a written document executed by both parties, in all instance in accordance with City policies and procedures.

30. GOVERNMENTAL IMMUNITY:

The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 *et seq.*

31. ENTIRETY OF AGREEMENT:

This Agreement consisting of 21 pages, and Exhibit A, B, C and addendum # 1 contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

REMAINDER OF THIS PAGE LEFT INTENTIONALLY BLANK

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year

PROFESSIONAL SERVICES AGREEMENT

Project Name: Transfer Station Update Phase 2 & 3 Design

first above written.

CITY OF CHEYENNE, WYOMING

By: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer

Carol Intlekofer, City Clerk

Date: 6/9/2015

Noel Griffith, Jr. & Associates Architects

Noel R Griffith Jr

By: NOEL R GRIFFITH JR

Title: owner / ARCHITECT.

Date: 6/12/2015

ADDRESS: ~~214 E~~ 2515 Warren Ave
Chey, Wyo. 82001

EXHIBIT "A"

SCOPE OF WORK

A. Project Description

The City of Cheyenne, Wyoming is seeking qualification statements and service proposals from consulting groups for the design and construction administration of a Transfer Station Remodel and Expansion to the existing facility located at 220 College Drive, Cheyenne, Wyoming. The proposals should be designed to provide the City with a clear understanding of the scope of work to be completed. The specific nature of the scope of work for the project is outlined in this Request for Proposals (RFP). Consultants responding will be evaluated and a short list developed for formal interviews to be conducted at a later date. A schedule for Consultant selection and project completion is attached. Such proposals shall be submitted to the City of Cheyenne's Purchasing Office, 2101 O'Neil Ave., Cheyenne, Wyoming by 3:00 pm on Wednesday, April 1, 2015

I. Introduction and Background

The City of Cheyenne is currently designing an expansion to the Happy Jack Landfill and reinstating acceptance of Municipal Solid Waste (MSW). An expansion at Happy Jack Landfill also necessitates an expansion of the City of Cheyenne's Transfer Station. The transfer facility was built in 1985 to facilitate economical transport of waste to the Happy Jack Landfill. The transfer station accepts MSW, household hazardous waste, electronic waste, yard waste and other miscellaneous waste. The City has 10% design documents for the Transfer Station expansion. Because of significant cost involved in a Transfer Station expansion, the City has separated the project into smaller phases. The City has completed phase one, which included a Household Hazardous Waste Building, removing and relocating new underground fuel tanks and site improvements to accommodate the future expansion as shown in the 10% design documents. The City is now ready to design the second and third phases of the expansion. Phase two will update the existing Transfer Station and a two story addition to the front exterior for additional clerical staff. Phase three will expand existing Transfer station to include new tipping floors in addition to a tire, oil and lube bays to accommodate collection vehicles.

Consultant will be asked to:

- ◆ Present Building design options for the City's consideration.
- ◆ Prepare a full design of Phase 2 & 3.
- ◆ Prepare, submit, and acquire the needed permission and or permits from WDEQ to remodel and expand the existing Transfer Station.

Consultant must have experience in the design of Transfer Stations and a working knowledge of Transfer Station Systems.

II. Project Objectives

The objectives of this project are:

- ◆ Present updates for Transfer Station Update Phase 2 and Phase 3 Design options for the City's consideration.
- ◆ Prepare a full design of the City's selected options to Transfer Station Update Phase 2 and Phase 3 Design.
- ◆ Prepare Construction Bidding document as required by City of Cheyenne's purchasing department which includes the bidding document for Phase 2 "Transfer Station Update" and a separate Construction Bidding document for Phase 3 "Transfer Station Expansion."
- ◆ Perform Construction Administration for Phase 2 "Transfer Station Update" and a separate Construction Administration for Phase 3 "Transfer Station Expansion" on an hourly rate. Mileage and drive time to location may not be added to the cost of the Construction Administration hourly rate.

III. Scope of Services

The minimum scope of services related to this project includes the following: The Consultant is invited to provide additional steps or work tasks as they see fit to assist in the completion of the objective.

- A. The consultant shall meet with City staff to gain an understanding of the work already completed on the project.
- B. The Consultant shall be responsible for completing a full design of the Transfer Station Update Phase 2 and Phase 3 Design.
- C. The consultant shall prepare an Operations Manual to ensure optimal operations of the facility. Suggested comments and additions should be provided by the Consultant to enhance the City's ability to operate the facility in an efficient and safe manner.
- D. The consultant and City Staff shall expect to meet frequently, at least bi-monthly, with City staff during the design phase and on a weekly basis during the Construction Administration phase.
- E. The consultant shall research and make accommodation for two City of Cheyenne representatives to a tour two separate facilities of similar size and volume of MSW (150-200 tons/day) as the City's Transfer Station. Both facilities must be located in the continental United States.

IV. Materials/Information to be Provided by the City of Cheyenne

The following documents will be provided to the consultant by the City of Cheyenne Public Works Office:

- ◆ 10% design documents (conceptual plan) from RRT Design & Construction and Noel Griffith & Associates.
- ◆ As-built documents on the underground fuel tanks and site improvements from CGRS, Noel Griffith & Associates and AVI Engineers.

V. General Criteria for Evaluating Qualification Statements.

Experience:

The experience of the proposed consultants should be documented, particularly experience in projects similar to the project proposed by the City of Cheyenne. Consultant experience will be evaluated on the basis of consulting firms that have designed similar types of facilities in the solid waste industry for the transport and disposal of municipal solid waste (MSW).

Expertise:

Specific expertise is desirable in a variety of areas including the following:

- ◆ Developing design cost estimates that are within five percent of actual costs.
- ◆ Professional references shall be provided as practicable.
- ◆ Working knowledge of the WDEQ rules for collection and transfer of MSW.

Workability:

The qualification statement should provide assurance of the ability of the consultant to work with a diverse group of individuals and agencies including elected officials, citizens, property owners, businesses, and governmental organizations.

Conflicts of Interest:

The qualification statement shall specifically address any possible conflicts of interest and the proposer's position or response as to whether or not such other work or relationship may be deemed a conflict of interest with this project.

Special Qualifications:

The qualification statement shall identify any specific qualifications which might make the proposer uniquely qualified to provide the requested services. These may include similar work experience related to another community of similar size or a project of similar design.

Professional Staff:

The experience of the proposed consultant's personnel assigned to this project shall be noted. Individual biographical resumes with specific project experience related to the work task outlined in this request for proposals shall be included.

VI. Sub consultants

The consultant shall be responsible to retain and pay for the services of any sub consultant necessary to complete the work. The City and the consultant shall mutually agree to the use of any sub consultants which the consultant desires to retain.

VII. Meetings

The consultant shall meet with members of the City staff at least on a bi-monthly basis during design phase and on a weekly basis during the construction administration phase to keep all current on the progress of the project. The consultant may also be required to meet with the City Council to discuss the project and recommendations.

VIII. Contract

The consultant will be required to sign a contract with the City of Cheyenne, in the form attached, relating to the work to be performed. Such contract shall include, but is not limited to, the following articles: method of compensation, time of performance, subcontracts, duties of the consultant, termination of the contract, ownership of material, changes, EEO, submission of material, and obligations to the City. See attached sample professional services contract.

IX. Recommendations

To be considered, the proposal must respond to all requirements in the RFP. Any other information believed to be relevant, but not applicable to the enumerated categories, should be provided as an appendix to the proposal. If publications are provided, the document and page number shall be referenced. The proposal shall be divided into sections as indicated below:

Statement of Project Requirements: Each proposer shall state in sufficient terms its understanding of the project requirements presented in this RFP.

Scope of Work: Each proposer shall describe in narrative form the proposer's technical plan for accomplishing the work. Please use the tasks as outlined in the Scope of Work provided in this RFP as a guide. Additions to or modifications of the Task descriptions are permissible, but reasons for changes shall be fully allocated to each Task. Include a Gantt chart showing each task and event. In addition, include a cross reference of each task and event with the proposed assigned staff and number of hours for each staff position to complete the task or event. A fee schedule with each proposed staff position must be included.

Personnel and Prior Experience: Each proposal should identify specific executive, professional and technical personnel who will be assigned to the project. The proposal shall indicate the responsibilities each person will have in the project and indicate the previous

related work experience of each individual. Personnel indicated having appropriate expertise for this project must be assigned to the project and be actively engaged in completion of the tasks. Any changes in assignment of personnel shall be reviewed with the City of Cheyenne to assure consistent technical expertise throughout the term of the project.

Cost and Price Analysis: Each proposer is required to outline their approach to negotiating a fee for services. The proposal shall provide an estimate of the total costs involved in completing the project. The City reserves the right to contract for all or a portion of the project depending on budget constraints.

Sealed Proposals: Each proposal must be submitted to the City Purchasing Office located at 2101 O'Neil Ave, Cheyenne, Wyoming 82001 by 3:00 p.m. local time, April 1, 2015. No additional proposals will be received thereafter. Five copies of each proposal must be submitted. The proposal will remain valid for at least one hundred twenty (120) days.

X. Criteria for Selection

All proposals received shall be subject to evaluation by a Selection Committee comprised of City staff, City selected representatives and City Council representatives. The evaluation shall be for the express purpose of selecting the proposal which most clearly meets the RFP requirements. The following areas will be considered in the selection:

1. Understanding the Problem: This is the contractor's understanding of the needs of the City of Cheyenne, the objectives of the RFP, and the nature and scope of work involved.
2. Consultant Qualifications: This includes the ability of the consultant to meet the needs of the RFP. The consultant should focus on time constraints, cooperation and participation by City staff, WDEQ staff, elected officials, and special interest groups, and the quality and relevancy of recent projects of similar nature completed by the consultant.
3. Professional Personnel: This is the competence of professional personnel assigned to the project by the consultant. Qualifications of all professional personnel will be measured by education and experience, with particular emphasis on experience and analysis of innovative practices particularly in States with similar weather, population, and resources to the State of Wyoming. Individual biographical resumes with specific project experience related to a study or project similar to MSW Transfer Stations Systems will be given strong consideration.
4. Soundness of Approach: Emphasis shall be placed on; the stated techniques for collecting and analyzing data, the sequence and relationship of major project steps, the methods for managing the project, the rationale for Transfer Station design with particular emphasis on technical soundness and economical feasibility, the

practicality of successfully constructing the Transfer Station design and the implementation of the daily operations.

5. Cooperative Process: This is the consultant's understanding, expression, and historical experience involving projects which demonstrate sensitivity for developing a spirit of cooperation between different levels of government such as the City and the State, elected officials, individual citizens, and City staff.

XI. Interviews

City staff will review all proposals and select a maximum of five (5) consultants for interviews by the selection committee. Upon completion of the interviews one firm will be selected on the basis of compliance with criteria. In the event that a satisfactory fee cannot be negotiated with the selected firm, the City will contact other firms in the order of their ratings to negotiate a contract. Final selection and award of the contract will be made by the City of Cheyenne City Council.

XII. Fees

The negotiated fee shall be based on both estimated project costs and reimbursable expenses. Estimated project costs include time, materials and the hourly rate for technical personnel. The negotiated fee should include a cost not to exceed amount. By submitting a proposal, the consultant warrants that he or she is aware of the budget for the project and is confident that he/she will be able to complete the project within budget.

XIII. Contract Award

The City of Cheyenne reserves the right to accept, reject, or request changes in proposals. The City will work closely with the selected consultant to develop or refine a detailed scope of work, schedule for completion of tasks and costs associated with completed work included in the contract documents. The City is not liable for any costs incurred by the consultant prior to contract issuance.

XIV. Addenda to the Request for Proposals

In the event that it becomes necessary to revise any part of this RFP, addenda will be provided to all consultants invited to respond.

XV. Late Proposals

Late proposals will not be accepted. It is the responsibility of the consultant to ensure that the proposal arrives prior to the dates outlined in this request for proposals.

XVI. Response Material Ownership

The material submitted in response to the RFP becomes the property of the City of Cheyenne and will only be returned to the consultant at the City's option. Responses may be reviewed by any person after the final selection has been made. The City of Cheyenne has the right to use any or all ideas presented in reply to this request. Disqualification of a consultant does not eliminate this right. The consultant shall not charge for the preparation of this proposal. All materials, products, labor and indirect fees shall be at the expense of the consultant.

XVII. Acceptance of Proposal Content

The contents of the proposal submitted by the successful consultant may become contractual obligations if the City of Cheyenne wishes to execute a contract based on that proposal. Failure of the successful consultant to accept these obligations in a contract may result in cancellation of the award and such consultant may be removed from future solicitations.

XVIII. Reference Checks

The City of Cheyenne reserves the right to contact any reference, client, or regulatory agency listed in the documents for information which may be helpful to the City in evaluating the consultant's performance on previous assignments.

Location tours are given with two Business day notice, contact Public Works Department @307-637-6294 to set up an appointment with Craig LaVoy, P.E. Public Works Engineer.

B. Project Budget

The total budget for the project for design purposes includes design, City of Cheyenne bidding process, and construction administration on an hourly basis. Total funding from 6th Penny, Grants and Loans are not to exceed \$11,000,000.00.

C. General Conditions

The following items are considered to be included as part of the basic compensation for this project:

- Normal business expenses - phone, postage, etc.
- Cost of insurance
- In-house computer time and service
- Word processing, accounting, and man-hour records
- Permits and license fees
- Mileage
- Travel fees, room and board, per diem
- Printing costs for all standard review, bidding, and as-constructed plans and other correspondence and contract documents
- Film and processing
- Overtime engineering and inspection
- Special inspections, including vacuum excavation pot-holing

- Survey materials, stakes, etc
- Additional required services

Any changes in the Consultants or Sub-consultants staff or fee structure shall be presented in writing to the City for approval prior to initiating any changes or performing any work.

D. Preliminary Design Phase

Upon receipt of Notice to Proceed with this project, the Consultant shall proceed with the following tasks:

1. Furnish five copies of the preliminary design for review by the City of Cheyenne.
2. Advise City of estimated Project Cost. The Consultant shall provide a summary of the probable Project Cost based on the Preliminary Design Drawings and Specifications showing estimated construction quantities, estimated bid prices, and items of work. The bid tabulation shall be laid out using standard numbering for work items and basic pay units.

The services will be completed and the data submitted within the stipulated period indicated in "Exhibit C Project Schedule."

E. Final Design Phase

The City of Cheyenne will review the preliminary design and cost estimate. The City of Cheyenne will then provide Consultant with comments, suggestions and or modifications. The consultant will, upon receipt of written authorization from the City of Cheyenne, proceed with final design and shall:

1. Prepare final drawings showing the character and extent of the project and specifications while incorporating any modifications or changes indicated during review of Preliminary documents.
2. Advise the City of Cheyenne of any adjustments to the latest estimated project cost caused by changes in extent or design requirements of the Project. The Consultant shall provide a summary of the probable project cost based on the Final Design Drawings and Specifications showing estimated construction quantities, bid prices, and items of work. The bid tabulation shall be laid out using standard numbering for work items and basic pay units.
3. Furnish five copies of the above final design documents then present and review them in person with the City of Cheyenne.

F. Construction Administration Phase

1. Prepare City of Cheyenne Bidding and Construction Documents.
2. Conduct a Pre-Bid meeting to answer questions associated with project
3. Review all submitted bids and provide the City of Cheyenne with a detailed analysis. Include a recommendation of responsible successful bidder.
4. Attend City Council and Finance meetings as necessary to provide detailed information

on successful bidder's documentation.

5. Administer, conduct and inspect all work under the City's Bidding and Construction Documentation. Cost of onsite inspection is to be shown as a separate itemized hourly price.
6. Conduct training for City personnel on operations and maintenance at Transfer Station.

The services will be completed and the data submitted within the stipulated period indicated in "Exhibit C Project Schedule."

“EXHIBIT B”

COMPENSATION SCHEDULE

The Consultant shall prepare and submit proposed estimated compensation, bearing in mind that it should be a unit-based contract with a negotiated not-to-exceed amount. A Payment Schedule based upon the following and any other pertinent payment schedule shall be submitted with payment for a specific phase not exceeding the scheduled amount prior to completion of that phase:

Preliminary Design Phase 2	<u>\$ 103,500.00</u>
Preliminary Design Phase 3	<u>\$ 234,000.00</u>
Final Design Phase 2	<u>\$ 102,000.00</u>
Final Design Phase 3	<u>\$ 350,000.00</u>
Construction Administration Phase 2	<u>\$ 40,000.00</u>
Construction Administration Phase 3	<u>\$ 165,000.00</u>
Operations Plan	<u>\$ 15,000.00</u>
Application for Transfer Station Permit	<u>\$ 8,400.00</u>
Transfer Station Tours	<u>\$ 14,400.00</u>
Total Contract Amount	<u>\$ 1,032,300.00</u>

“EXHIBIT C”

PROJECT SCHEDULE

The key milestones for the **Transfer Station Remodel and Expansion**

The designer should complete the following schedule as part of the proposal and include any other key dates needed.

Date	Schedule Item
May 29, 2015	Notice-to-proceed issued by City
June 15, 2015	Hold scoping meeting with City Representative
August 17, 2015	Submit preliminary design phase documents
September 8, 2015	Meet with City to discuss review of design
January 21, 2016	Submit final design phase documents
February 18, 2016	Conduct Pre-Bid meeting
March 18, 2016	Bid Opening Phase 2
May 4, 2016	Start Date Phase 2
November 4, 2016	Completion Date Phase 2



Purchasing Division
2101 O'Neil Ave., Room 104
Cheyenne, WY 82001
307/637-6345

Additional Scope of Work

As the design progresses the chosen Consulting firm will need to make available their time and any conceptual drawings to the City and or the City's consultant in order to renew our Transfer Station Permit. The City Transfer Station permit expires in May 2016. A permit application needs to include these updates as well any change to future operations at the site by November 2015. As construction is anticipated to be complete after this application date the time may be used to aid the City and or the City's Consultant on amendments to the Transfer Station permit as construction is completed.

Key Dates of the Transfer Station permit renewal are as follow:

Application will need to be submitted in November 2015 to the WDEQ

Permit will expire May of 2016.

Use 60 hours for estimating purposes as this will be billed on an hour by hour basis and not all time is anticipated for this task and may have a different funding source.

Include an addition line item in "EXHIBIT B" Compensation Schedule for the 60 hours.

Proposer are required to acknowledge receipt of this addendum on Attachment "B-2" of Proposals